

Reasons for decision

24 October 2024

Our reference: 69983

Insurer reference: S23LW142013

Direct telephone: 07 3842 2787

Dear Mr Shepherd

RE: Application for review - Mr Cory Shepherd

I refer to the application for review received by the Workers' Compensation Regulator on 16 September 2024 in relation to the decision by WorkCover Queensland (WorkCover) to reject your application for compensation (the application).

Review decision of 22 October 2024

I have confirmed the decision of WorkCover to reject your application for compensation in accordance with section 32 of the *Workers' Compensation and Rehabilitation Act 2003* (the Act).

Background

You submitted an application for compensation to WorkCover on 1 July 2024 for a psychological injury sustained on 18 June 2024 as a result of workplace stress and bullying. At the relevant time, you were employed on a full-time basis as an Administration Officer by Metro South Hospital and Health Service, undertaking your duties at Logan Hospital.

WorkCover investigated your application and on 13 September 2024 issued written reasons for their decision to reject your application pursuant to section 32 of the Act. In arriving at this decision, WorkCover identified four factors causative of your psychological injury – manager's failure to follow rules, management's failure to take action regarding an ethical complaint made by you, your payment being withheld, and roster guidelines not being followed. WorkCover determined that the first and third factors were unable to be substantiated, while the second and fourth factor amounted to reasonable management action taken in a reasonable way. This meant to the extent that your injury arose out of your employment where employment was a significant contributing factor, it arose out of reasonable management action taken in a reasonable way. Consequently, the

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exclusionary provisions in section 32(5) of the Act were enlivened and your psychological injury was excluded from the definition of 'injury' according to section 32 of the Act. As a result, your claim was not one for acceptance.

It is this decision you seek to be reviewed.

Grounds for review

On 16 September 2024, you lodged an application for review with the Workers' Compensation Regulator, requesting a review on the following grounds:

- there was significant oversight by WorkCover in the handling of your claim
- you have additional documentation to provide
- WorkCover failed to consider the entirety of the evidence
- you have several ongoing workplace concerns.

In addition to the application for review, you also submitted:

- copy of email of Ms Taegan Griffiths, employee at Together ASU, dated 24 July 2023
- copy of your email to Ms Griffiths dated 24 July 2023
- copy of your email to Together ASU dated 18 May 2024
- copy of email of Ms Heather Hayes, Organising Director at Together ASU, dated 20 May 2024
- annotated email of Ms Hayes dated 20 May 2024
- your email to Ms Zaida Variava, employee at Together ASU, dated 16 June 2023
- copy of your email to WorkCover dated 26 August 2024 regarding a union delegate
- copy of the first page of WorkCover's reasons for decision dated 13 September 2024
- annotated response of employer dated 15 August 2024
- copy of various text messages between you and Ms Chloe Taylor, your Line Manager
- annotated extracts from undated documents.

Review process

The review is an independent administrative process or a 'review on the papers'. This means that as the decision-maker, I have considered the material on WorkCover's claim file (S23LW142013) and any new information provided by you or another party during the review process.

All of the evidence including submissions, the application for review and WorkCover's file has been considered, although I may not specifically refer to all of the documents in my review decision.

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Evidence considered

In undertaking this review, I have considered all of the evidence on WorkCover's file as well as the evidence provided to the Workers' Compensation Regulator, and in particular the following documents:

- application for compensation, lodged 1 July 2024
- reasons for decision of WorkCover dated 13 September 2024
- application for review, lodged 16 September 2024
- WorkCover's communications report (communications report), as at 18 September 2024
- hospital and health service general employees (Queensland health) award – State 2015
- recruitment and selection policy dated June 2020
- fatigue leave following weekends and/or rostered days off policy dated June 2020
- fatigue risk management policy dated February 2021
- union encouragement policy dated August 2021
- corrupt conduct complaint form 13 May 2024
- attendance variation and allowance claim signed by Ms Taylor dated 28 May 2024
- validation of claims older than 3 months form signed by Ms Taylor dated 28 May 2024
- statement provided by you on 12 July 2024
- two statements of Ms Carolyn Jeffrey, Switchboard Operator, dated 18 Jul 2024 and 1 August 2024
- two responses provided by you dated 9 August 2024
- two responses provided by you dated 19 August 2024
- various emails sent by you to WorkCover
- various emails between you and other employees
- various switchboard services rosters
- various annotated pay advices
- various text messages between you and Ms Taylor
- annotated employer's response dated 15 August 2024 submitted by you at review
- two responses of the employer dated 15 August 2024 and 6 September 2024
- three work capacity certificates of Dr Peter Hawes, General Practitioner, dated 1 July 2024, 11 August 2024, and 8 September 2024
- work capacity certificate of Dr Ki Pang, General Practitioner, dated 7 August 2024.

Issues for determination

Section 108 of the Act states that compensation is payable for an 'injury' sustained by a 'worker'.

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It is not disputed that you are a 'worker' within the meaning of the Act. This is not an issue for review.

The issue to be decided at review is whether you sustained an 'injury' within the meaning of section 32 of the Act. If the provisions of section 32(5) of the Act are satisfied, they exclude a psychiatric or psychological condition from the definition of 'injury' within section 32(1) of the Act.

Therefore, I must determine whether it is more probable than not that:

- you sustained a personal injury
- the personal injury arose out of or in the course of your employment
- the employment is a significant contributing factor to the injury
- the injury arose out of or in the course of:
 - reasonable management action taken in a reasonable way by the employer in connection with your employment
 - your expectation or perception of reasonable management action being taken against your
 - action taken by WorkCover in connection with your application for compensation.

I will now consider each element in turn.

Did you sustain a personal injury?

The work capacity certificate of Dr Hawes dated 1 July 2024 stated you sustained anxiety and stress. This was maintained in the work capacity certificate of Dr Pang dated 7 August 2024 and two work capacity certificates of Dr Hawes dated 11 August 2024 and 8 September 2024.

Having regard to the medical evidence, and in the absence of evidence to the contrary, I am satisfied you sustained a personal injury of a psychological nature.

Did the personal injury arise out of or in the course of your employment and was the employment a significant contributing factor to the injury?

The communications report details a conversation you had with WorkCover on 4 July 2024, whereby you reported your psychological injury was caused by workplace bullying, predominantly with the manager and director.

In the statement provided by you on 12 July 2024 you highlighted various issues which you believed were causative of your psychological injury. You first indicated the employer

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communicated they would provide accredited payment for a recognised Australian education, and other additional payments, but you never received either despite providing to the employer your accredited diploma of fitness. You noted you made multiple requests for these payments, which were treated with hostility and declined. You then expressed Ms Taylor was determined to make you feel undervalued and undermined by her actions, which included spreading rumours about you. You also noted that while you were employed as a casual, you signed an agreement allowing for an 8-hour break between your shifts, even though the standard provided for a minimum break of 10 hours or an entitlement to fatigue pay.

Another concern which you expressed was the lack of advertising for the position for which Ms Cherie Abbott, employee in Switchboard Services team, was hired, which prevented other employees from applying. A major issue for you was the rostering. You indicated there was a reduction in penalty shifts, an increase in fatigue and your experience was undervalued in favour of less qualified individuals due to bias and friendships. Your requests for days off were ignored while other employees were granted shifts as per their requests. The roster was not fairly allocated, and employees favoured by Ms Taylor received shifts according to their requests while you were subjected to arbitrary scheduling.

Following a complaint made by you, you noticed you were treated differently, and your questioning of policies and procedures increased tension. You also disclosed a specific incident which you believed contributed to your injury. You corrected a mistake and noted the importance of verifying numbers in the communication book, but the note was torn out the following day and you were accused by Ms Taylor and her friend of having malicious intent in writing the note. You expressed it seemed that all actions of the director and the manager were inconsistent with legislation, policy and interest, and any concerns raised by you were met with grief. You then provided another example of an employee being hired for a newly created position, when there was no consultation, advice, transparency or equal opportunity with respect to the creation and hiring of this position. You then continued to express concerns regarding further payment issues. During your employment you also raised the absence of a union delegate and expressed your interest in obtaining training to become one. After some time, Ms Taylor told you no one replied to her advertisement of the role, even though you noted you expressed your interest in the position via email to Ms Taylor and you were never directly asked about you taking the role. You stated Ms Taylor was avoiding appointing you as the delegate on purpose.

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While I acknowledge the causative factors identified by you, I am also mindful of the finding in *Rowe v Q-COMP*,¹ that an injured worker is not always best placed to identify the cause of a psychological injury and that factors identified by an injured worker may not be found upon investigation by health professionals to be real or actual factors contributing to the injury. Accordingly, I must consider the medical evidence concerning whether these factors were causative of your injury.

The work capacity certificate of Dr Hawes dated 1 July 2024 attributed your psychological injury to harassment at work, specifically the ongoing violation of workplace rules and victimisation of you by bosses. This was maintained in all three later work capacity certificates.

According to the communications report, WorkCover spoke with Dr Hawes on 2 September 2024, whereby Dr Hawes opined your psychological injury was caused by management failing to follow rules, management's lack of action in response to your complaint, the withholding of your payment and non-adherence to and manipulation of the roster.

Upon review of the available factual and medical evidence, I find the following factors have been nominated by you and identified by your doctor as medically causative of your psychological injury:

Factor 1: Non-adherence to rules by management

Factor 2: Management action taken in response to your complaint

Factor 3: Withholding of pay

Factor 4: Non-adherence to and manipulation of the roster guidelines

I must now determine whether these factors are able to be substantiated.

Factor 1: Non-adherence to rules by management

In the overview of events provided by you to WorkCover on 12 July 2024, outlined management did not adhere to rules in the following aspects:

- hired employees without advertising the position and providing other employees with an opportunity to apply
- failed to obtain a union delegate, which was a departmental requirement
- did not keep employees accountable, including managers, who failed to follow rules

¹ [2009] QIRC 9; 190; QGIG 93.

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- Ms Taylor and Ms Stibbard allocated themselves as the on-call contacts after hours without departmental input
- issued directives without consultation or input.

I note the supplied Recruitment and Selection policy dated June 2020 records, allows for direct appointments to be made at the discretion of the delegate.

The supplied Union Encouragement policy dated August 2021 states the employer recognised the constructive role of democratically elected union delegates and that role was to be formally recognised, accepted and supported on conditions that unions notify the employer of such delegates.

You supplied several emails in support of your application which I have summarised below:

On 22 July 2021, Ms Tammy Reese, Director, emailed staff members regarding the Business Case for Change, which she attached to the email. She invited feedback from employees and relevant unions regarding the proposed changes and noted the consultation period was open from 22 July 2021 until 5 August 2021, following which the feedback would be reviewed and considered prior to the implementation plan being drafted.

In an email dated 8 December 2021, Ms Reese informed staff members that Ms Sandra Johnstone, Switchboard Line Manager at the time, was extending her leave and then going on secondment, which meant Ms Reese was looking to backfill her position temporarily for three months as soon as possible. Ms Reese stated all staff were welcome to apply and in the meantime, she would continue to act as line manager.

In an email dated 27 October 2022, Ms Reese invited employees to attend a consultation meeting regarding the proposed organisational change.

The email of Ms Reese dated 2 November 2022 attached another Business Case for Change and encouraged staff members to review it and provide feedback regarding it. She confirmed the consultation period was open and would close on 16 November 2022.

An email of Ms Taylor dated 16 February 2023, sent at 6:03 am, informed employees of her changed hours in the office that day.

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In emails dated 8 May 2023 and 9 May 2023, Ms Taylor informed the team she was not attending the office on those days and to contact her by telephone for anything urgent.

On 12 May 2023, Ms Taylor emailed the team and confirmed she would be in the office the following Monday.

Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role. She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard. She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor.

In an email dated 23 August 2023, Ms Taylor stated she was a full-time employee and worked flex hours, and acknowledged she recently had been starting and finishing at different times. She stated she was trying to set a routine around her children. She noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm, and when there were any changes to her times or presence, she would always inform Ms Reese and the team regarding it.

Ms Taylor emailed the team on 1 September 2023 and informed she would be on leave from 13 September 2023 until 18 September 2023. During this time, she directed employees to contact Ms Stibbard, and Ms Taylor if they cannot reach Ms Stibbard.

On 12 September 2023, Ms Taylor emailed the team and reminded she commenced her leave on 13 September 2023 until 17 September 2023.

The email of Ms Taylor dated 14 November 2023 stated she would be attending the office at around 10:30 am that day.

On 16 November 2023, Ms Taylor informed staff members, via email, that she had a planned day off that day.

The email of Ms Taylor dated 30 November 2023 informed she would be away the following day as it was her planned leave day.

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On 15 April 2024 Ms Taylor emailed the team attaching the updated rosters. She wrote herself and Ms Stibbard added after-hours on call and the roster showed who was on call after hours.

Ms Taylor explained employees were able to contact Ms Taylor or Ms Stibbard after hours for any queries.

On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry.

Ms Taylor emailed the team on 17 May 2024 and clarified when she would be in the office, when she would be working from home and when she was contactable.

On 18 May 2024, you emailed Together ASU and expressed the switchboard department did not have a designated union delegate, and in these circumstances, you volunteered to become the delegate. To do so, you required training, and thus requested access to paid union training from Together ASU.

You received a response from Together ASU via email on 20 May 2024. It was stated the team would contact you regarding the training and becoming a delegate.

Ms Reese emailed employees on 30 May 2024 to provide an update regarding organisational change. She stated the feedback with respect to the Business Case for Change had been invaluable and the Implementation Plan was at the time with Human Resources for final review as per standard process and would proceed to the delegate for consideration. Further, Ms Reese informed Ms Taylor, who had been backfilling the Switchboard Manager role, had been permanently appointed through a higher classification review process following her temporary appointment from an expression of interest in March 2022. The employer planned to advertise the vacant AO3 Administration Officer position in the coming weeks.

The email of Ms Taylor dated 18 June 2024 informed staff members of her work arrangements.

You supplied to WorkCover a statement of Ms Jeffrey dated 18 July 2024 which submitted Ms Taylor was handed her position and was raised from an AO4 to an AO5 with no formal process, and no one was able to apply for this position. Ms Jeffrey wrote that since Ms Taylor commenced the manager role, her actual start and finish times were never transparent. She came when she liked and left in less than 8.5 hours.

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In the statement dated 1 August 2024, Ms Jeffrey reiterated Ms Taylor came to the office late and left early. Ms Jeffrey asserted she was committing fraud, but it was ignored, and concluded management did not follow the code of conduct or support their staff.

In your procedural fairness response dated 9 August 2024, provided to WorkCover, you stated the following issues in the workplace required addressing: hiring of staff members, lack of union delegation, bullying, addressing changes in workplace cooperatively and overall adherence to policies. You specified the employer did not follow many principles in the HHS Act and EB11 agreement, particularly section 1.9 of the agreement. Further, Ms Taylor consistently removed the first aid kit in the department and placed it in non-allocated spots.

In your further response dated 19 August 2024, you wrote Ms Taylor paid herself for her 30-minute meal break which was supposed to be unpaid. Further, you noted Ms Taylor was very selective about who she updated regarding her office hours.

In a separate response also dated 19 August 2024, you expressed the proposal for a business case for change was not compliant with evidence-based practice or the FRMS. You stated the changes made were questionable and showed unfair bias and corruption, and the change in the business structure occurred without consultation. You reaffirmed Ms Stibbard was hired without consultation and without a formal recruitment phase prior to her commencement, which removed the opportunity for others to apply and created an unfair workplace. You asserted the first time the role was advertised, Ms Stibbard was confident she would be assigned the newly created role as she obtained it before its existence, and it was not advertised to the public or staff beforehand. You then referred to Ms Taylor and Ms Stibbard initiating themselves to be on call after hours. You felt this was a plot to obtain additional income, which was a misuse of government funds.

You emailed WorkCover on 26 August 2024 and expressed that under the EB11 agreement, a union representative was to be provided by the employer for the employees to raise their concerns, but when you informed Ms Taylor and Ms Reese of your situation, they could not identify the current delegate. Even though you offered to complete the necessary training to become the delegate, and a group email was sent to allow everyone the opportunity to participate, Ms Taylor later confirmed no one had responded. You concluded the department took no further action regarding you becoming the delegate or to provide you with a union delegate.

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In an email to WorkCover dated 29 August 2024, you referred to Ms Taylor's email dated 15 April 2024 regarding the after hours on call, and stated Ms Taylor and Ms Stibbard decided to implement this without consultation.

You emailed WorkCover on 30 August 2024 and in referring to the email of Ms Taylor dated 19 April 2024 regarding the new process for data entry, commented she failed to consult regarding this new process.

During the review, you submitted an annotated response of the employer, whereby you wrote, in relation to the union delegate issue, that Together ASU forwarded the employer the forms for you to become the delegate, but the employer discriminated against you and did not action this.

The response of the employer dated 15 August 2024 referred to various issues raised by you. The employer first explained the union delegate nomination and election process was managed by the respective union who provided coverage, which meant your concerns with respect to it were not the responsibility of the employer. The employer referred to the Union Encouragement policy in support of this. It was then submitted the employer conducted all appointments in accordance with their Recruitment and Selection policy. The selection process for Ms Danielle Cook, previous Switchboard Manager, and Ms Taylor were advertised to the entire Switchboard team through an Expression of Interest process and an interview process was undertaken, at the end of which it was decided Ms Cook and Ms Taylor were suitable for the position and were given the opportunity to job share. Ms Taylor was subsequently appointed to the Switchboard Manager role according to the Public Sector Commission Directive 03/23 Review of acting or secondment at higher classification level. With respect to your concern regarding Ms Taylor not working her required hours, the employer wrote this was incorrect and Ms Taylor consistently fulfilled her contracted hours each week and adhered to the employer's flexible working arrangement policy. It was noted that when Ms Taylor would start work late or finish early, she communicated this to her team, and there were no concerns regarding her punctuality or attendance.

I appreciate that you perceived various management actions to be taken in violation of rules. However, I find there is insufficient evidence to substantiate this. With respect to the hire of employees, I find the employer did not breach the rules and adhered to their policies. The employer also was not responsible for obtaining a union delegate, but rather was responsible for merely allowing one to be present, and thus also did not breach rules by the lack of a delegate due to no fault on their part. No evidence has been provided in support of your assertion that management did not keep employees accountable for their rule-breaking activities and

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consequently I find this also was not substantiated. Finally, you did not provide evidence in support of your submission that changes made to processes and structures were in violation of rules, and the employer confirmed the changes were valid. Therefore, I find this factor is unable to be substantiated.

Factor 2: Management action taken in response to your complaint

You filled out a corrupt conduct complaint form on 13 May 2024, whereby you stated it appeared Ms Taylor was engaging in fraudulent activities by claiming unnecessary on-call hours in the department and logging on from home when she was not present. You further alleged Ms Taylor displayed inappropriate behaviour, such as harassment, bullying, dishonesty, and an autocratic management style.

On 15 May 2024, Ms Janelle Loader, Director of the Ethical Standards Unit, emailed you to acknowledge receipt of your complaint form. She noted that since you had further information to provide, they would wait for further details from you to progress the assessment.

Ms Murray Brooks, Principal Investigator, emailed you on 20 May 2024 to follow up further information regarding your complaint. She advised that to progress the assessment of the broad concerns raised by you, they required particulars for each matter.

On 27 May 2024, Ms Brooks emailed you regarding your complaint. She stated that in the absence of any particulars relevant to your allegations, they finalised an assessment of the matter and determined it did not raise reasonable suspicion of corrupt conduct and would refer your concerns and complaints to Human Resources. However, they invited you to provide further information if you wished to in the future.

In an undated email, Ms Reese scheduled a meeting with you at 10:00am on 12 July 2024 to discuss the outcome of your complaint.

In an email dated 12 July 2024, Ms Reese stated she rescheduled the meeting to 16 July 2024 since you were away on that day.

The overview provided by you on 12 July 2024 stated that following the complaint, you noticed a change in your treatment, and you believe your questioning of policies and procedures was perceived as a challenge to your manager and director, leading to further tension.

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In your response dated 19 August 2024, you asserted you raised concerns regarding corruption and actions of Ms Taylor. It appeared the claims were taken seriously due to the response you received on 20 May 2024 and the subsequent closing of the case on 27 May 2024. However, you found the short period within which the case was closed concerning. Due to the great importance of the matter, and the Unit's reliance on the information presented by you, you assumed there was no formal investigation. You noted that due to the short timeframe and your work commitments, you were unable to gather all the necessary evidence to support your claims.

In their response dated 15 August 2024, the employer stated you submitted a complaint on 16 May 2024 to the Ethical Standards Unit broadly outlining potential inappropriate behaviours of Ms Taylor, but you provided no additional information when it was requested. The Unit subsequently determined the information reported did not provide any reasonable avenue of further enquiry and the allegations as initially provided did not raise a reasonable suspicion of corrupt conduct. Ms Reese attempted to contact you to discuss your allegations and concerns, but you did not respond to her several attempts to meet. The employer concluded that due to your refusal to participate in the process, they were unable to take any action to resolve your concerns.

In considering the evidence, I find you submitted a complaint regarding Ms Taylor and the employer took steps in response to receiving your complaint. However, the evidence does not support that no action was taken by management in response to your complaint. Therefore, I find this factor is able to be substantiated to the extent that you lodged a complaint, and some action was taken by management to review it, but not to the extent that there was no response to it.

Factor 3: Withholding of pay

In an email to Ms Taylor dated 8 April 2024, you requested a formal review of your payment for the period between 8 March 2024 and 31 March 2024. You expressed you did not receive payment for the Saturday public holiday on which you were not required to work and were not compensated with the correct penalty rates for your Monday shift, 6:00 am to 2:00 pm, following the Sunday shift, 2:00 pm to 10:00 pm.

Ms Elaine Grant, Client Service Officer in payroll, emailed Ms Taylor on 3 May 2024 explaining the issues with your pay.

On 10 May 2024 you emailed payroll and expressed your concerns regarding the challenges faced by Ms Taylor in relation to payment processing.

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Payroll emailed you on 13 May 2024, and confirmed they could not see any issues had been corrected. They instructed you to speak with your manager to correct the issues through the submission of an AVA.

In an email to you dated 21 May 2024, Ms Taylor stated she was awaiting payroll confirmation about a few issues and as soon as she received it, she would submit an AVAC for the next pay run.

In the overview provided by you on 12 July 2024, you outlined various issues regarding your pay. These included the following:

- despite providing an accredited diploma of fitness, you did not receive the payment for recognised Australian education, as was communicated you would, and also did not receive additional payments
- you did not receive income for time off work due to Covid even though you provided the necessary paperwork for this entitlement
- Ms Taylor cancelled your shift without pay when you informed her in advance that you would be delayed in commencing work by approximately 1 hour
- you were denied fatigue pay due to an agreement you signed while you were employed on a casual basis, and which was inconsistent with your later signing of the full-time contract.

In an email to WorkCover dated 18 July 2024, you wrote Ms Taylor had been withholding payments for overtime you completed.

The employer, in their response dated 6 September 2024, submitted there was no evidence to suggest pay was withheld from you in accordance with your entitlements. They confirmed corrective action was taken by Ms Taylor as per internal processes to correct the payroll and entitlement errors you experienced.

Given the evidence, I am satisfied there were issues with respect to your payment and various actions were taken in response to them. I therefore find this factor is able to be substantiated.

Factor 4: Non-adherence to and manipulation of the roster

The policy regarding fatigue leave following weekends and/or rostered days off dated June 2020 stated the worker is entitled to either fatigue leave or overtime pay if the worker does not have at least 10 consecutive hours off duty between shifts.

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The switchboard services roster for the period between 19 September 2022 and 2 October 2022 showed what shifts you were rostered to complete. I note all shifts had at least 10 hours between the finish time of the previous shift and the start time of the next shift.

On 7 August 2023, you emailed Ms Taylor and management and wrote you did not agree to be rostered as you were. You noted the union passed an agreement for rest days after night shifts and you did not agree to be rostered differently to this. For this reason, you refused to work on Monday morning with less than a 24-hour break following a night shift.

The switchboard services roster for the period between 4 March 2024 and 17 March 2024 depicted the shifts you were allocated. I note all shifts had a minimum of 10 hours between the finish time of the previous shift and the start time of the next shift.

The shifts allocated to you for the period from 18 March 2024 to 31 March 2024, according to the switchboard services roster, had a minimum of 10 hours in between them, however, this was not so for your shift on 17 March 2024 and 18 March 2024, which only had 7 hours in between.

The shifts allocated to you in the switchboard services roster for the period between 15 April 2024 and 28 April 2024 had at least 10 hours off duty between each shift. The same is seen in the switchboard services roster for the period from 29 April 2024 to 12 May 2024.

On 12 July 2024 you provided an overview of the events to WorkCover whereby you raised an issue with the rostering practices. You referred to signing an agreement while you were working on a casual basis which allowed you to only have 8 hours in between shifts, even though the standard break was 10 hours or fatigue pay was provided. However, later in the overview you submitted this agreement ceased operating once you commenced full-time employment, and you would never agree to an 8-hour break without compensation while working five shifts per week. You also asserted there was a reduction in penalty shifts, but an increase in fatigue due to the poor roster development. You believed your experience was undervalued in favour of less qualified individuals due to bias and friendships. Further, while other employees were granted shifts as per their requests, your requests for days off were ignored or taken as leave not scheduled. Additionally, the shifts were not fairly allocated, and employees favoured by Ms Taylor received shifts according to their requests while you were subjected to arbitrary scheduling.

In the response dated 9 August 2024, you submitted you were the only employee with such a short break time between shifts, and this was not fair or appropriate. Specifically in relation to the shifts

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scheduled on 17 March 2024 and 18 March 2024, there was only 7 hours of break in between, and in considering travel time, it left you with less than 5 hours of break time. As a result of the rostering practices, you felt fatigued. You wrote Ms Taylor had a malicious intent in attempting to apply the agreement you signed at the commencement of your employment to change the minimum break time. You submitted that since your commencement, you have signed new terms and working arrangements as a full-time employee, and applying such a condition in these circumstances was legally and ethically malicious. You asserted the agreement to allow an 8 hour break instead of 10 hours does not require signing to relinquish it, was not legally binding and was no longer fit for purpose since your transition from casual employment to full-time. You concluded Ms Taylor exploited her role to control employees' income through malicious rostering structures and specifically in your case, also the use of the agreement made by you as a casual employee.

The response of the employer dated 6 September 2024 submitted that in pay period 20, commencing 4 March 2024, you were scheduled for 3 night shifts with appropriate rest days allocated. These shifts included two Sundays and one on Saturday. On 11 March 2024 you left work one hour early and arrived 15 minutes late on each Sunday. During pay period 21, you were not scheduled for any night shifts. On 19 March 2024 you took sick leave, and on 24 March 2024 arrived 27 minutes late. On 25 March 2024 and 26 March 2024 you took annual leave. You were also scheduled to work one full weekend and were rostered on for Good Friday on 29 March 2024 and Easter Sunday on 31 March 2024. The employer also confirmed you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement. That meant it remained current.

In considering the information available, I find the employer only failed to maintain a 10-hour break in between your shifts, as required by policy, on one occasion, namely between the shifts on 17 March 2024 and 18 March 2024. No evidence has been provided in support of the remainder of your assertions made in relation to the rostering. I therefore find this factor is able to be substantiated only to the extent of the one occasion of non-adherence to policy.

After considering the evidence available at review, I am satisfied that factors 2, 3 and 4 have been established to an extent. Therefore, to the extent that your psychological injury has arisen out of these factors, I am satisfied that the injury has arisen out of your employment.

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The work capacity certificate of Dr Hawes dated 1 July 2024 indicated your mechanism of injury was consistent with his clinical findings and there was no pre-existing factor or condition. This was maintained in all later work capacity certificates.

According to the communications report, in a conversation with WorkCover on 2 September 2024, Dr Hawes stated that work events were the sole cause of your psychological injury.

Having regard to the medical evidence, I am satisfied your employment was a significant contributing factor to the psychological injury.

It is now necessary for me to determine whether your injury has arisen out of or in the course of management action, and if so, whether management action is found to be reasonable and taken in a reasonable way.

Did the injury arise out of or in the course of management action?

The term 'management action' is not defined in the Act. It has been interpreted by the Courts broadly and will vary depending on the circumstances of the case. The action must relate to action taken by or on behalf of the employer in connection with the worker's employment.

In *Avis v WorkCover Queensland*², the Industrial Court held that the phrase 'arising out of' involves a causal or consequential relationship between the management action and the injury, but does not require a direct or proximate relationship.

Factor 2: Management action taken in response to your complaint

Submitting complaints regarding aspects of your employment is connected to your employment. The complaint was reviewed by the Ethical Standards Unit, and then by Human Resources. These departments have the power to take action in response to your complaint on behalf of the employer. I find the steps taken by them were taken on behalf of the employer in connection with your employment and therefore amounted to management action.

Factor 3: Withholding of pay

The pay issues arose as a result of Ms Taylor refusing your claims for payment in specific situations. Ms Taylor was your direct manager and thus in a superior position, which provided her with the power to manage your employment. Receiving payment for your work is directly

² [2000] QIC 67

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connected to your employment. As such, I find Ms Taylor's decisions with respect to your remuneration amounted to management action.

Factor 4: Non-adherence to and manipulation of the roster

The roster scheduled shifts of employees and indicated when employees were to undertake their employment. The roster was developed by Ms Taylor, who was in a position to manage your employment. The development of a roster and consequent allocation of shifts to you is directly related to your employment since you are not able to undertake it without the roster. Based on this, I am satisfied that in developing a roster which was directly related to your employment, Ms Taylor was undertaking management action since she was able to manage your employment in this way. Therefore, the factor constitutes management action.

Was the management action reasonable and taken in a reasonable way?

In the matter of *Prizeman v Q-COMP*,³ President Hall stated that the onus is on the worker seeking compensation to establish that management action was unreasonable or undertaken in an unreasonable way, and that in the absence of evidence to support that assertion, management action must be considered reasonable.

I have also had regard to the case of *Bowers v WorkCover Queensland*,⁴ in which the Industrial Court determined that 'management action need not be perfect or above criticism and reasonable management action permits some failings, deficiencies and flaws'. It was also considered that blemishes in respect to performance by management does not make the management action unreasonable.

Factor 2: Management action taken in response to your complaint

I refer to the previous evidence outlined earlier in the decision with respect to this factor. I acknowledge that you felt no formal investigation was undertaken since the Ethical Standards Unit relied solely on the information provided by you to assess the allegations. The employer conceded this was true, but submitted this was because they required further information from you and despite requesting it, you refused to participate in the process. For this reason, they did not have sufficient information to undertake a thorough assessment of the allegations. Since the Unit acknowledged receipt of your complaint in a timely manner, emailed you on various occasions to request additional information, and ultimately delivered a timely decision, I find their actions were reasonable and taken in a reasonable way. It was reasonable for them to proceed without

³ [2005] QIC 53; (2005) 180 QGIG 481.

⁴ [2002] QIC 18.

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undertaking a thorough investigation given you, as the complainant, were not willing to participate and provide further information. I note you submitted you did not have enough time to provide further information, however, due to your lack of communication of this information to the Unit, they could not have known this was the reason for your lack of participation. Likewise, I find Ms Reese contacted you twice in an attempt to schedule a meeting with you to discuss your concerns and allegations, and without your participation in this process, there was no other actions available for Ms Reese to take. Therefore, I am satisfied this factor amounted to reasonable management action taken in a reasonable way.

Factor 3: Withholding of pay

Section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides for payment entitlements with respect to public holidays. It indicates that an employee shall be paid at the rate of double time and one-half with a minimum of 4 hours for work done on Easter Saturday and Easter Sunday. All employees are also entitled to be paid a full day's wage for Labour Day irrespective of whether no work may be performed on such day, and if an employee does work on Labour Day, they are entitled to the full day's wage in addition to a payment for the time actually worked at one and one-half times the ordinary time rate of pay with a minimum payment as for 4 hours' work. Further, where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday.

The policy regarding fatigue leave following weekends and/or rostered days off dated June 2020 stated an employee was to be granted fatigue leave if the employee worked more than 2 hours overtime between 10:15 pm and the commencement of work on their next ordinary rostered working day and did not have at least 10 consecutive hours off duty during the 15 hours immediately preceding the commencement of work on the next ordinary rostered working day. This leave is to be granted until the employee had 10 consecutive hours off duty and no pay is to be deducted during this period. If an employee continues work without having had 10 consecutive hours off duty, payment is made at double rates until the employee is released from duty for such period and the employee is entitled to be absent until completing the required 10 consecutive hours off duty without loss of pay. The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day.

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The annotated pay advice dated 28 April 2021 indicates you received no payment for the public holiday you had off on 5 April 2021.

The annotated pay advice dated 26 May 2021 states you did not receive the public holiday payment due to you being rostered on the night shift and still required the payment.

The annotated pay advice dated 27 April 2022 submitted your shifts fell on days without public holiday rates and consequently you required payment for two public holidays.

On 4 April 2023 you messaged Ms Taylor with an image of the upcoming roster and stated 'Definitely needs amendment prior to the 4 public holidays'. In response she asked whether she gave you a weekend on that roster. You replied you received 1 of 5 public holidays and that public holiday was the only Sunday shift. She then wrote, 'I meant did I roster you the next weekend'. You responded you were okay with it, but her roster actually reduced your pay by \$1,500 for the fortnight. She replied that she would look at it tomorrow.

In the annotated pay advice dated 26 April 2023, you indicated you were allocated a night shift and again were not paid for the Easter Monday public holiday as per section 23.

On 20 February 2024, you messaged Ms Taylor, stating you had tested positive for Covid and asked what the current policy was. She stated you were eligible for up to 5 days paid leave with the Special Pandemic Leave request and you would have to provide photo evidence of your Covid test against your identification. She requested that you send it to her so she could submit it in MyHR. On 21 February 2024 Ms Taylor then messaged you and informed she had to decline your request in MyHR because the minimum period for Covid leave was 5 days for a positive staff member. She noted the statutory declaration you provided was sufficient evidence. She requested for you to resubmit your leave days. After you asked for some clarification and she provided it, you messaged you were confused about why your amended leave request was declined. You noted you did everything as required. Ms Taylor replied that the dates were fine, but it was necessary for you to attach the statutory declaration to the request, and once it was attached she could approve it. She stated she was then in her office if you wanted further assistance with this. You then sent her screenshots and stated you were not sure what was occurring, and you never deleted the declaration on your end.

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You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024. You specified you did not receive payment for the Saturday public holiday on which you were not required to work and had not been compensated with the correct penalty rates for your Monday shift following a Sunday shift. You noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break.

In response to your email dated 8 April 2024, Ms Taylor sent you an email on 9 April 2024. She stated she submitted an AVAC for public holiday not required on Saturday 30 March 2024 and this would be processed in the next pay run. With respect to the other dates you outlined, she asked for you to submit an enquiry through MyHR payroll enquiries so they can investigate your entitlements for public holiday not required payments, since they are older than 3 months. Ms Taylor noted that if payroll decided you were entitled to those payments, she would happily submit a validation of claims older than 3 months form. She added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this. She then proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you.

On 24 April 2024 you emailed Ms Taylor and informed you had been in touch with the payroll department regarding discrepancies in your payments, who advised you to notify Ms Taylor that payments for public holidays not worked would need to be processed as overtime in the fortnightly pay cycle. You asked for Ms Taylor to please take the necessary action and provide a PRN for confirmation. You then expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment.

Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020. However, she noted you are able to terminate this agreement going forward. In relation to your query about the top-up/reduction of hours on your payslips, Ms Taylor indicated an investigation was currently underway by payroll. She explained the payroll system automatically generated adjustments for top-up/reduction hours which she was unable to view directly and that if you notice any discrepancies on your future payslips, to inform her immediately so she could facilitate a prompt resolution. Likewise, payroll was also at the time still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee, and also your overtime

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concerns. She confirmed that since your commencement of full-time employment, all payments for public holidays not required had been processed.

Ms Grant emailed Ms Taylor on 3 May 2024 and outlined you had wages top up on fortnight commencing 5 February 2024 for 0.95 minutes as you were under contracted hours, and it was topping up the missing wages from your RDO balance. This was due to you having a 7-hour shift on 9 February 2024 instead of an 8-hour shift. Ms Grant stated that if a shift was shortened when RDO was accruing, the remaining shift not worked needs to be booked as leave without pay to stop the top up. The same occurred for the following fortnight commencing on 19 February 2024. The opposite occurred for the fortnight commencing on 18 March 2024. There were too many ordinary shifts, which resulted in a wage reduction of 7.55 hours because one of the shifts had to be overtime. Likewise, during the fortnight commencing 1 April 2024, you worked overtime. Ms Grant requested Ms Taylor to submit an AVAC to correct the shifts for each fortnight so you were paid correctly and your RDO balance could be amended.

On 10 May 2024, you emailed payroll and expressed your concern regarding Ms Taylor's challenges with payment processing.

In response to your email of 10 May 2024, payroll responded via email dated 13 May 2024 and informed they could not see that any issues had been corrected. They instructed for you to speak to Ms Taylor to have them corrected with a submission of an AVAC.

On 21 May 2024, Ms Taylor emailed you and informed she was awaiting payroll confirmation regarding some payroll issues and as soon as she received it, she would submit an AVAC for the next pay run.

The Attendance Variation and Allowance Claim signed by Ms Taylor dated 28 May 2024 indicated you finished an hour early on 9 February 2024 and on 28 February 2024, had the public holiday off on 30 March 2024 and finished an hour late on 1 April 2024.

The Validation of Claims Older than 3 months Form signed by Ms Taylor on 28 May 2024 stated adjustments were to be made to your shifts due to incorrect entries, and once these adjustments were processed, your RDO balance would be correct.

The overview of events provided by you on 12 July 2024 generally stated it was unreasonable for Ms Taylor to decline various payments claimed by you given you had an entitlement to them. You

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submitted you were entitled to the following payments: accredited payments for recognised Australian education, income while you were on sick leave due to Covid, and fatigue pay.

In an email to WorkCover dated 18 July 2024, you submitted Ms Taylor was withholding payment for your overtime hours. You explained that initially Ms Taylor advised you to contact payroll to resolve this. At that point, you had already reached out to them but were of the understanding that the proper process to address pay discrepancies was to involve management, which is why you initiated the contact with Ms Taylor. Following an email from payroll, Ms Taylor informed she was awaiting their response. You noted you found it appropriate that payroll included Ms Taylor and yourself in the emails. After waiting for a week, you followed up with payroll to inquire about Ms Taylor's response and were informed she had not yet replied, however eventually Ms Taylor again told you she was waiting for a response from payroll. You described the situation as frustrating and exhausting. You felt this was an act of control and abuse, forcing you to fight for your rightful earnings. Further, you submitted it was unreasonable for Ms Taylor to avoid resolving this issue during work hours.

In a response dated 9 August 2024, you stated you were entitled to fatigue pay due to only having a 7-hour break between the end of your shift on 17 March 2024 and beginning of the shift on 18 March 2024. Due to the fatigue from this, you took leave on 19 March 2024, but the payment was taken from your sick leave, and you did not receive fatigue pay. You also noted Ms Taylor attempted to apply the agreement you signed as a casual employee allowing only an 8, instead of a 10, hour break in between your shifts. You highlighted this agreement was no longer in force, since you signed a permanent full-time contract, which superseded it.

In another response also dated 9 August 2024, you stated that an examination of the dates requiring payment adjustments, compared to the dates when your payment was actioned and processed, is concerning. You further submitted Ms Taylor preferentially rostered employees, which led to a lack of shifts for you on public holidays and consequently a reduction in payment. You then proceeded to submit you were not paid as required for the most recent public holiday, and when you contacted Ms Taylor regarding it, she was slow to action it and falsely misrepresented that it was payroll's fault. You noted she eventually processed the pay correction on 28 May 2024, which was not timely given that the pay error dated back to February 2024. With respect to the income you were entitled while on sick leave due to Covid, you wrote Ms Taylor abused her authority and bullied you by delaying and not approving your leave. You enquired from Ms Taylor whether she preferred you to send her the information directly or through MyHR. As per her request, you uploaded the statutory document to MyHR on 20 February 2024. Ms Taylor then

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sent you a message on 21 February 2024 informing she declined the leave because the dates were incorrect. You submitted that at a later time, Ms Taylor then informed you the dates were correct, after you sent her the guidelines, and claimed you had not uploaded the statutory declaration. She again declined your leave. On 29 February 2024, you sent Ms Taylor a text message asserting the documents were there and showed her on your phone that the declaration was still uploaded, whereby the upload time was stated as 20 February 2024. Ms Taylor contended it was not there when she declined the leave, and she finally approved the entitlement after the third attempt on 29 February 2024. You noted you were eventually paid, in both instances, but Ms Taylor used her authority to withhold your payments maliciously.

The response of the employer dated 6 September 2024 submitted they had no evidence to suggest your pay had been withheld. Corrective action was taken by Ms Taylor as per the employer's internal process to correct payroll and entitlement errors.

I acknowledge there were various issues regarding your pay. Throughout your submissions you have expressed your dissatisfaction with the process of the employer in reviewing your payments and highlighted it was unreasonable for you to be required to fight for your entitlements. I find that the extent of pay issues experienced by you amounted to blemished management action. However, I note the pay issues ultimately were all resolved. Ms Taylor, payroll and Human Resources were always encouraging of you expressing your issues as soon as possible, were attentive to the issues you expressed and undertook necessary reviews and corrective actions to resolve them. As such, while the occurrence of the issues was a blemish, the resolution of them amounted to reasonable management action taken in a reasonable manner. Therefore, I find this factor constitutes reasonable management action taken in a reasonable manner.

Factor 4: Non-adherence to and manipulation of the roster

I note previously in this decision I found this factor was substantiated only to the extent that the employer failed to provide you with a minimum 10-hour break between shifts on 17 March 2024 and 18 March 2024. As a result, my decision regarding whether this factor amounts to reasonable management action taken in a reasonable way will be focused only on this substantiated non-adherence.

The policy regarding fatigue leave following weekends and/or rostered days off dated June 2020 advocates for a minimum 10 hours of break between the finish of one shift and the commencement of the next shift by an employee.

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The fatigue risk management policy dated February 2021 requires line managers to ensure fatigue risk is assessed and recorded, and where level of risk is high, to manage, monitor, review and communicate the risk.

The switchboard services roster for the period between 4 March 2024 and 17 March 2024 shows you were scheduled to work until 11:00 pm on 17 March 2024.

The switchboard services roster for the period between 18 March 2024 and 31 March 2024 demonstrated you were scheduled to commence working on 18 March 2024 at 6:00 am.

On 8 April 2024, you emailed Ms Taylor and requested a review of your pay for the period between 8 March 2024 and 31 March 2024. You particularly requested that you be compensated with the correct penalty rates for your Monday shift from 6:00 am to 2:00 pm, following a Sunday shift rostered from 2:00 pm until 10:00 pm on the previous fortnight.

In response to your email dated 8 April 2024, Ms Taylor sent you an email on 9 April 2024. She stated that, as discussed previously with you, if you have any concerns regarding your rosters, to please see her as soon as possible.

On 1 May 2024, Ms Taylor informed you via email that following a consultation with payroll and Human Resources, your request for fatigue pay for 18 March 2024 would not be processed because of the existing 8-hour agreement. She mentioned you had the option to terminate the agreement and she could provide you with the information regarding how to do so.

In the overview provided by you on 12 July 2024 you explained that upon commencing your casual employment, when you were working 2-4 days per week, you signed an agreement allowing the employer to roster you on shifts which had a minimum 8-hour break, instead of the standard 10-hour break required. Eventually, after you had transitioned to full-time employment, you raised your concerns about fatigue pay. Ms Taylor responded to this that she had to consult Human Resources about your underpayment, and after a lengthy process, she rejected your claim and cited an agreement for an 8-hour break between your shifts, which you noted contradicted your full-time contract. You pointed out she was wrongfully applying the agreement made during your casual employment, but received no further correspondence from her and no payment was made. You submitted it was unreasonable for an employer to intentionally schedule you for shifts with less than a 10-hour break in between and to apply the contract which you signed when you were only working twice a week.

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In your response dated 9 August 2024, you stated you were expected to finish on 17 March 2024 at 11:00 pm and start again on 18 March 2024 at 6:00 am. This meant you received only a 7-hour break between the shifts, which did not include travel time. If you factored in travel time, your break between shifts would have been less than 5 hours. You reiterated it was unreasonable for Ms Taylor to apply the 8-hour agreement you signed earlier in this situation.

The response of the employer dated 6 September 2024 submitted that during pay period 20, commencing on 4 March 2024, you were scheduled for 3 night shifts with appropriate rest days allocated. You arrived 15 minutes late on 17 March 2024. The employer wrote that records indicate Ms Taylor took appropriate action by shortening your shift, but this resulted in you being remunerated for the 30 minutes you did not work. The employer did not mention your shift on 18 March 2024. They also confirmed you had not formally rescinded your agreement for only an 8-hour break, which you signed on 17 June 2020, and the change of your contracts and adjustments in working hours did not invalidate this agreement. This meant the agreement remained current. In their response, the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award, which stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances.

In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply. However, it is not necessary for me to consider whether the employer's stance on its application was reasonable. The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours. Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break. Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement.

Conclusion

After considering the evidence available at review, in relation to the factors for determination, I have determined:

- you sustained a personal injury of a psychological nature
- your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor
- factors 2 and 3 amounted to reasonable management action taken in a reasonable way

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- factor 4 amounted to unreasonable management action.

In the decision of *Delaney v Q-COMP*⁵ the Industrial Court held that in determining the issue of whether management action was reasonable and taken in a reasonable way, a global evaluation of management actions must be made. In *Delaney*, it was held that when management actions are joined by subject matter, time and personality, the actions are entitled to be evaluated on a global basis.

I note that since two out of the three causative factors amounted to reasonable management action taken in a reasonable way, this means your psychological injury mainly arose out of such management action. Further, factor 4 was initially only substantiated to the extent of one incident and it was only the one incident which amounted to unreasonable management action. Therefore, I find overall your psychological injury arose out of reasonable management action taken in a reasonable way and section 32(5) is consequently enlivened.

Summary

I therefore conclude that the provisions of section 32(5) of the Act exclude your psychological condition from the definition of 'injury' within section 32(1) of the Act.

Therefore, I have determined that you did not sustain an 'injury' in accordance with section 32 of the Act and you do not have an entitlement to compensation.

Appeal rights

If either party disagrees with this decision then either party may appeal to the Queensland Industrial Relations Commission in Brisbane. Either party has 20 business days from the date of receipt of this decision in which to lodge an appeal. A copy of the notice lodged with the Commission must also be served on the Workers' Compensation Regulator within 10 business days.

For information about the appeal process please contact me or refer to:

<https://www.worksafe.qld.gov.au/claims-and-insurance/compensation-claims/appealing-a-review-decision/guide-to-appealing-a-review-decision>.

⁵ [2005] QIC 11; 178 QGIG 197

Reasons for decision

Yours sincerely



Victoria Squires

Senior Reviewing Officer

Review Unit

Workers' Compensation Regulatory Services

cc Metro South Hospital And Health Service

cc WorkCover Queensland